

Opinion of the Court

On the United States' side, the responsibility for attempting to prevent the illegal entry of dangerous persons and goods rests primarily with the U. S. Customs and Border Protection Agency, and one of its main responsibilities is to "detect, respond to, and interdict terrorists, drug smugglers and traffickers, human smugglers and traffickers, and other persons who may undermine the security of the United States." 6 U.S.C. §211(c)(5). While Border Patrol agents often work miles from the border, some, like Agent Mesa, are stationed right at the border and have the responsibility of attempting to prevent illegal entry. For these reasons, the conduct of agents positioned at the border has a clear and strong connection to national security, as the Fifth Circuit understood. 885 F.3d, at 819.

Petitioners protest that "'shooting people who are just walking down a street in Mexico'" does not involve national security, Brief for Petitioners 28, but that misses the point. The question is not whether national security requires such conduct—of course, it does not—but whether the Judiciary should alter the framework established by the political branches for addressing cases in which it is alleged that lethal force was unlawfully employed by an agent at the border. Cf. *Abbasi*, 582 U.S., at 142 (explaining that "[n]ational-security policy is the prerogative of the Congress and President").

We have declined to extend *Bivens* where doing so would interfere with the system of military discipline created by statute and regulation, see *Chappell*, 462 U.S. 296; *Stanley*, 483 U.S. 669, and a similar consideration is applicable here. Since regulating the conduct of agents at the border unquestionably has national security implications, the risk of undermining border security provides reason to hesitate before extending *Bivens* into this field. See *Abbasi*, 582 U.S., at 142 ("Judicial inquiry into the national-security realm

nal organizations] maintain the greatest drug trafficking influence in the United States").